

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC044939: JARED RYAN MILGRIM vs LARUB KEBAB LLC, et al.

07/06/2026 in Department 21

Motion to Compel Further Responses to Special Interrogatories, Set Two

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff/Cross-Defendant’s Notice of Motion and Motion to Compel Further Responses to Special Interrogatories, Set Two, Against Defendant Lars Andre Lackas for Issue, Evidentiary, and/or Terminating Sanctions (*Unopposed*)

Tentative Ruling: Plaintiff’s motion to compel further responses to Special Interrogatories, Set Two, is GRANTED in part and DENIED in part.

The motion is GRANTED as to Nos. 16–27 and 29–38; DENY as to No. 28. Plaintiffs’ request for issue, evidentiary, and/or terminating sanctions is DENIED.

Preliminary Matters:

Again, as with the Demurrer and Motions to Strike, Plaintiff/Cross-Defendant’s memorandum in support of his motion to compel further responses is improperly single-spaced. California Rules of Court, rule 2.108 requires lines on each page to be one-and-one-half spaced or double-spaced, subject only to limited exceptions such as real property descriptions, footnotes, quotations, and certain printed forms. Plaintiff/Cross-Defendant’s memorandum does not fall within those exceptions.

Plaintiff/Cross-Defendant’s status as a self-represented litigant does not excuse the violation. California law permits a party to represent himself, but it does not give that party a different set of procedural rules. The California Supreme Court has made clear that “mere self-representation is not a ground for exceptionally lenient treatment,” and that, unless a particular rule provides otherwise, the rules of civil procedure apply equally to represented and self-represented parties. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) Self-represented litigants are entitled to the same consideration as represented litigants, but not greater consideration. (*Williams v. Pacific*

Mutual Life Ins. Co. (1986) 186 Cal.App.3d 941, 944; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.)

Here, however, the Court will exercise its discretion to consider the motion on the merits. Unlike Plaintiff/Cross-Defendant's prior omnibus filing, the present memorandum is six pages single-spaced. Although improper, the memorandum does not appear to have resulted in the same practical evasion of the 15-page limit applicable to most opening memoranda under California Rules of Court, rule 3.1113(d). Nor does the present defect, standing alone, warrant denial of the motion without consideration of the merits. The Court therefore admonishes Plaintiff/Cross-Defendant for the improper filing, but will rule on the motion to compel further responses on its merits.

Plaintiff/Cross-Defendant is expressly admonished that all future filings must comply with the California Rules of Court, including the line-spacing requirements of rule 2.108 and the memorandum page limits of rule 3.1113. Future non-compliant filings may be disregarded, stricken, denied without prejudice, or otherwise addressed as the Court deems appropriate, including the potential for sanctions after proper notice and an opportunity to be heard.

Merits of the Motion:

Turning to the merits of the motion, Plaintiff seeks further responses to Plaintiff's Special Interrogatories, Set Two, from Defendant/Cross-Complainant Lars Andre Lackas, after the Court had already ordered him to serve verified, Code-compliant responses without objection by April 13, 2026.

The motion is GRANTED as to Special Interrogatory Nos. 16-27 and 29-38. Defendant's responses to those interrogatories are evasive, incomplete, and not Code-compliant. The responses generally fail to answer the specific factual information requested, fail to address the separately stated subparts, and fail to describe the reasonable and good-faith inquiry that was made where Defendant/Cross-Complainant claims lack of recollection or lack of knowledge. **Defendant/Cross-Complainant is ordered to serve further verified responses to Special Interrogatory Nos. 16-27 and 29-38, without objections, within 20 days.**

The motion is DENIED as to Special Interrogatory No. 28. That interrogatory asks whether Defendant/Cross-Complainant personally witnessed specified conduct by Ruben Classen toward Plaintiff. Defendant/Cross-Complainant responded that he has no knowledge of such conduct and did not witness any of the described events. Although the response is brief, it substantially answers the core interrogatory. Because Defendant/Cross-Complainant states that he did not witness the described events, no further response is required as to whether he intervened or took action in response to witnessed conduct.

Defendant/Cross-Complainant is admonished that if he lacks personal knowledge or cannot fully answer an interrogatory, he must answer to the extent possible and must make a reasonable and good-faith effort to obtain the information reasonably available to him. A response stating only that Defendant/Cross-Complainant "does not recall," "was not directly involved," or has "limited

involvement,” without answering the specific question asked or describing the inquiry made, is not sufficient under CCP § 2030.220.

Many of Plaintiff/Cross-Defendant’s interrogatories contain multiple lettered subparts and even sub-subparts. Many ask multiple questions under a single interrogatory number. Some are effectively several interrogatories bundled into one. CCP § 2030.060(f) prohibits that format. Many are argumentative and assume disputed facts as true. They do not simply ask for facts; they often ask Defendant to “reconcile” his position with Plaintiff’s evidence or to accept Plaintiff’s characterization of the evidence. Others ask whether facts “prove” fabrication or whether conduct could be understood as a “conspiracy to defraud.” That is closer to cross-examination or argument than a clean interrogatory seeking facts. Several interrogatories use request-for-admission language inside special interrogatories. Some ask Defendant to “admit” that certain events occurred. Many questions are heavily loaded with Plaintiff’s evidence, conclusions, and argumentative phrasing.

However, objections were waived. Therefore, Defendant must provide further verified responses to the extent the interrogatories seek factual information. The Court does not require Defendant to adopt Plaintiff’s argumentative premises, agree with Plaintiff’s characterization of the evidence, or provide legal conclusions. But Defendant must answer the factual portions directly, completely, and straightforwardly, and if he lacks knowledge or recollection, he must state he has made a reasonable and good faith inquiry as required pursuant to Code of Civil Procedure section 2030.220. Here, when asked about certain information, Defendant has not represented that he, in fact, looked for the information, such as prior text messages, in order to respond to the questions. Under the circumstances, when responding that a good faith inquiry has been made, Defendant is ordered to state what inquiry was in fact made.

Plaintiff’s request for issue, evidentiary, and/or terminating sanctions is DENIED. Those sanctions are not warranted at this stage, but Defendant/Cross-Complainant is warned that failure to comply with this order may result in issue, evidentiary, monetary, or terminating sanctions.

Plaintiff/Cross-Defendant to give notice.